

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PORTION OF THE W½E½ OF SECTION 35, T.14N., R.66W., 6TH P.M., LARAMIE COUNTY, WYOMING (LOCATED EAST OF PENNSYLVANIA AVENUE, BETWEEN 13TH STREET AND ATLANTIC AVENUE).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Kenneth E. Hess et ux, owners of the parcel of land being situated in a portion of the W½E½ of Section 35, T.14N., R.66W. of the 6th P.M., Laramie County, Wyoming, have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and
- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Jeffery B. Jones, a Professional Land Surveyor, registered in the State of Wyoming, PLS Number 5910; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned A-1 Agricultural and Rural Residential – by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING:_____

SECOND READING:_____

THIRD AND FINAL READING:_____

RICHARD L. KAYSEN, MAYOR

(SEAL)

CAROL INTLEKOFER, CITY CLERK

published:_____

ANNEXATION REPORT

Chukker Ridge, 2nd Filing **Annexation Summation**

CASE NUMBER: UDC-14-00663

FILE CODE: CKKR-PFZ

PREPARED BY: Joshua M. Tetzlaff

PUBLIC HEARING: February 9, 2015

REQUIRED DOCUMENTS: The following documents have been submitted and reviewed by staff:

- Complete Application
- Petition Signed by property owners
- Annexation Map 141224
- Soils Report (deferred to time of development)
- Signed clearance from the Board of Public Utilities

STAFF RECOMMENDATION

Staff recommends adoption of the annexation approval for Chukker Ridge, 2nd Filing.

ANNEATION REPORT & STAFF REPORT

Chukker Ridge, 2nd Filing Annexation

Annexation

CASE NUMBER: UDC-14-00663 **FILE CODE:** CKKR-PFZ

PREPARED BY: Joshua M. Tetzlaff

PUBLIC HEARING: February 9, 2015

OWNER: Kenneth E. Hess et ux 307.421.7152
5920 E. 13th Street
Cheyenne, WY 82001

AGENT: Steil Surveying Services, LLC 307.634.7273
Attn: Casey Palma
1102 W. 19th Street
Cheyenne, WY 82001

PROJECT: Chukker Ridge, 2nd Filing Annexation

WORK DESCRIPTION: An annexation application for a parcel east of Pennsylvania Avenue.

LOCATION:

1. Legal Description: a portion of the W½E½ of Section 35, T14N, R66W, 6th PM, Laramie County, Wyoming
2. Location: east of Pennsylvania Avenue between 13th Street and Atlantic Drive
3. Address: N/A

SIZE: 12.75 acres

CURRENT ZONING: A-2 (County)

PROPOSED ZONING: MR-2 Medium Density Residential

EXISTING LAND USE: Undeveloped

PROPOSED LAND USE: Single-Family Residential

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Undeveloped	A-2	County
South	Railroad	A-2	County
East	Undeveloped	A-2	County
West	Residential	MR-2	City

EXECUTIVE SUMMARY:

This application is for an annexation located east of Pennsylvania Ave, between 13th Street and Atlantic Drive. Growth into this area by the City is supported by PlanCheyenne, evidenced by its classification as Urban Residential and its being located within the City of Cheyenne Urban Service Boundary. With the subject property being about 35% contiguous with current City Limits on its west side, this parcel is a natural, geographic, and social part of Cheyenne. If this application is approved, all City services available to current City residents would be available to this subject property.

Due to meeting criteria set forth in Wyoming Statue § 14-1-102, staff recommends approval of this annexation.

PlanCheyenne:

PlanCheyenne recognizes the growth potential in this area of the city and thus has identified it as Urban Residential. Within areas designated as Urban Residential, a wide variety of housing types are recommended for use, ranging from single-family housing to apartments and condos. Since the area is located within the Urban Service Boundary, the City of Cheyenne has planned for this area to become part of the City.

ANNEXATION ELIGIBILITY DATA/ANALYSIS: Before any territory is eligible for annexation, the governing body must find that the following criteria are met (W.S. § 15-1-402 (a)):

COMMON WELFARE – *An annexation of the area is for the protection of the health, safety, and welfare of the persons residing in the area and in the city or town.*

Because connection to City water and sanitary sewer is required with all annexations, public health will be promoted, both for the residents who live within the planned development and also for the surrounding residents. The area will also be served by the Cheyenne Fire Department and Police Department, increasing the safety and welfare of the residents.

PART OF THE CITY – *The urban development of the area sought to be annexed would be constituted a natural, geographic, economic, and social part of the annexing city or town.*

With City boundaries immediately to the west, the annexation of the subject property is a natural and geographical extension of the City. The property is fully within the Urban Service Boundary for the City of Cheyenne meaning the City has planned for extension into this area.

LOGICAL EXPANSION – *The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed.*

All basic services available to the current residents of Cheyenne will be available to this property. There is capacity in both the water and sanitary sewer to bring this property on board.

CONTIGUOUS – *The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407.*

This property is contiguous with the City on its western side along 1,089.55 feet of property line, making it about 35% contiguous.

UTILITIES – *If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to service the annexed area pursuant to W.S. 15-1-4102.*

Franchises are in place to provide services to this property.

CERTIFIED MAILING – *The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date, and location of the public hearing required by W.S. 15-1-405(a).*

The required information was sent on January 8, 2015.

ANNEXATION REPORT DATA: In compliance with W.S. § 15-1-402(c) the following information is provided:

- (i) A map is not required for this report based on the absence of exercising the authority granted under W.S. 15-3-202 (b) (ii).
- (ii) The total **estimated** cost of infrastructure improvements required of the landowners by the City related to the annexation is approximately \$0.00. All improvements are deferred until time of development.
- (iii) Services customarily available to City residents include water, sewer, sanitation, police and fire protection. Development will require extension of water and sewer services, which are available to the subject property. Water and sewer services are provided upon application and payment to the Board of Public Utilities, with sanitation services occurring concurrently. Provision of these services is initiated by the property owner.
- (iv) Fees for water, sewer, and sanitation services are a variable amount for commercial units, based upon volume. Tap fees vary based on the size of the tap required.
- (v) The current property tax mill levy imposed is 66.00 and projected property tax mill levy imposed by the city is 71.00.
- (vi) The infrastructure described in (ii) above includes improvements required within the existing boundaries of the municipality to accommodate the proposed annexation.

REVIEWING AGENCIES WITH COMMENTS:

City Clerk: (Harry Osborn)

- It's currently Rocking K Addition 2nd Filing within Sun Valley 14th along the W line of the annexation parcel.
- Line 6 in the Notes block needs correction.

City Surveyor: (Jack Studley)

- Boundary data and legal descriptions appear in order.
- The plat data (P) provided for Sun Valley 14 I find to be in error with what appears on the plat of record: 208.17' (209.06'), 178.47' (178.45'), and 410.97' (411.87'). Double check me and correct accordingly.
- No City Coordinates are provided for the Easterly boundary of the proposed annexation. Request addition of this data.
- In NOTE 6 the parcel perimeter is provided as "1089.5'"(the adjoining perimeter only), but should read 3140.34'(total parcel perimeter). And the adjoining perimeter (1089.55') I calculate as being 35% of the total perimeter (3140.34'), instead of the 29% provided. Please double check me and correct or modify accordingly.

Engineering Department – General: (Nathan Beauhiem)

- The City Engineer's Office is amenable to postponing submittal of the final soils report until such time as detailed construction plans are submitted for the public infrastructure, following the approval of the various development actions by the Governing Body.

Environmental Health Department: (Roy Kroeger)

- Laramie County Small Wastewater System Regulations
 - o 201 Area Facilities Management Plan
 - This property is in the 201 Area and contiguous to the Cheyenne corporate limits. No small wastewater system permits can be issued.

REVIEWING AGENCIES W/OUT COMMENTS:

Board of Public Utilities – Linda Gunter

City Attorney – Dan White

Development Office – Brandon Cammarata

Fire Department – Jim Schamerhorn
Metropolitan Planning Office – Nancy Olson
Parks & Recreation Office – Teresa Moore
Urban Planning – Jim Flesher

REVIEWING AGENCY NOT RESPONDING:

CenturyLink (formerly Qwest) – Bob Bates
Charter (formerly Optimum) – Kurt Quinlivan
Cheyenne Light, Fuel & Power – Jack Wyatt
Laramie County Assessor – Clarice Blanton
Laramie County Attorney – Mark Voss
Laramie County Clerk – Cheryl Smith, Vicki Swanson
Laramie County Fire District #2 – Jason Caughey
Laramie County Planning & Development – Nancy Trimble
Laramie County Public Works – Justin Arnold
Laramie County Sheriff – Danny Glick
High West Energy – Lloyd Sisson
Laramie County Conservation District – Jim Cochran
Police Department – Brian Kozak
Public Works – Vick Nemecek

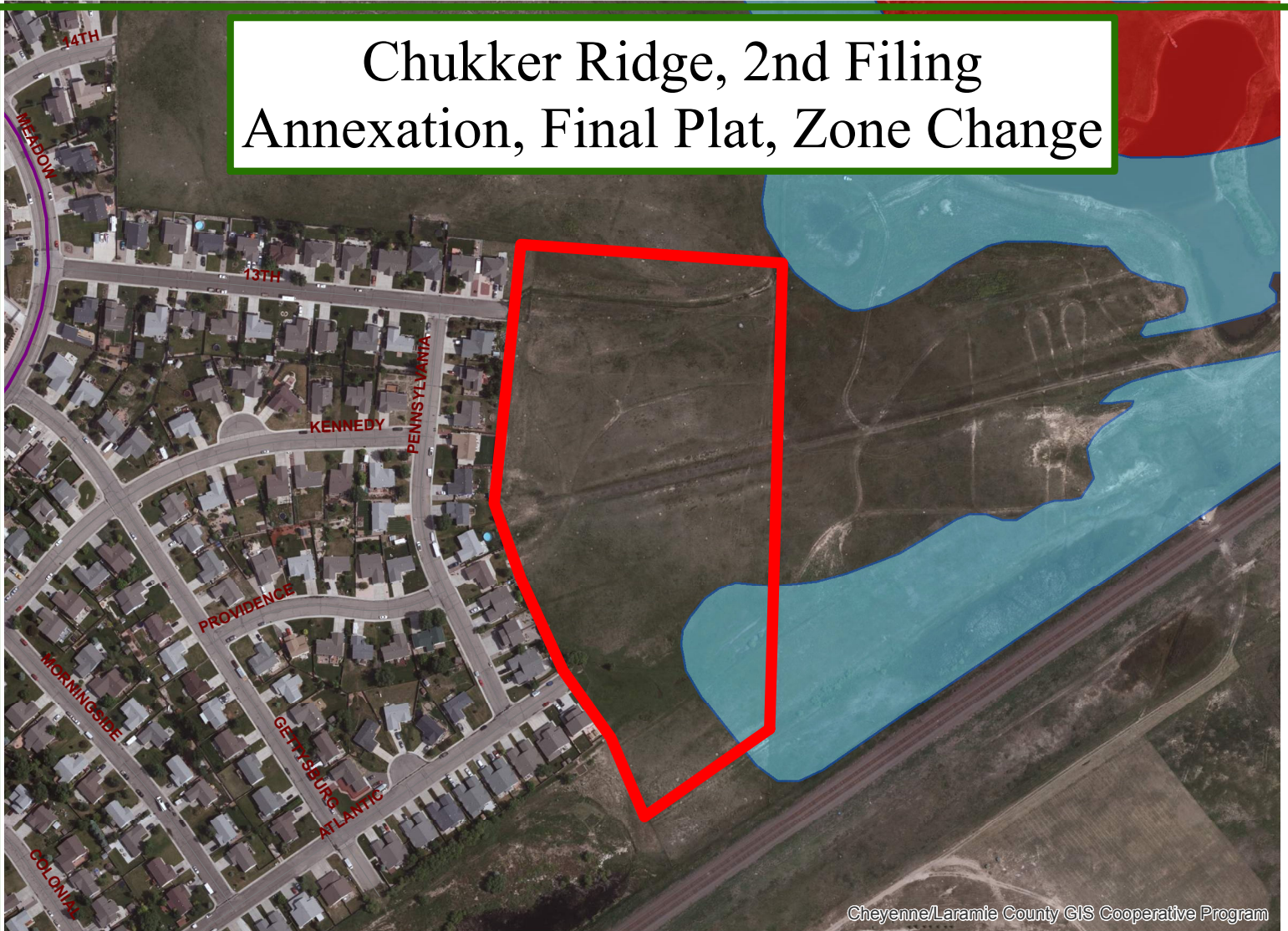
OTHER COMMENTS RECEIVED:

None

Encl: Annexation Ordinance
Annexation Map

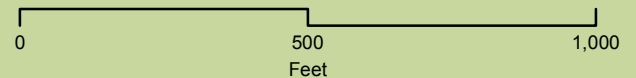
Cc: Agent
Owner
File

Chukker Ridge, 2nd Filing Annexation, Final Plat, Zone Change



Applicant: Kenneth E. Hess et ux
Agent: Casey Palma
Steil Surveying Services

Application Numbers
Annexation: UDC-14-00663
Zone Change: UDC-14-00664
Final Plat: UDC-14-00665



Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Annexation



